

TENTATIVE RULING

Case: Vaidya v. Dhesi et al.
Case No. CV2026-0221

Hearing Date: July 10, 2026 **Department Fourteen** **9:00 a.m.**

Demurrer:

The Court rules on defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, (collectively, “Deshi defendants”) and Blueberry Trading, LLC’s (collectively, “defendants”) demurrer to plaintiff Aditya Vaidya’s (“plaintiff”) complaint as follows:

- Defendants’ demurrer on the grounds that plaintiff’s complaint fails to state facts sufficient to support an alter ego theory of liability against the individual Deshi defendants is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to allege an alter ego theory of liability. (*Kao v. Joy Holiday* (2020) 58 Cal.App.5th 199, 205-207; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415 [“[t]o recover on an alter ego theory, a plaintiff . . . must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor”]; Complaint ¶¶ 18-21.)
- Defendants’ demurrer

Code, §§ 201-203, 226, 226.7, 510, 512, 1194, 17200 et seq.; *Day v. Alta Bates Medical Ctr.* (2002) 98 Cal.App.4th 243, 248; Complaint ¶¶ 22-28, 54-102.)

Plaintiff may amend his complaint by no later than **July 20, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motions to quash:

Defendants Rajpreet Dhesi and Anita Dhesi's motion to quash deposition subpoena for production of business records and Blueberry Trading LLC's motion to quash deposition subpoena for production of business records are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 1987.1.) The Court finds that Rajpreet Dhesi and Anita Dhesi and Blueberry Trading LLC failed to serve notice of their motions to Bank of America as required by Code of Civil Procedure section 1985.3(g). (Rajpreet Dhesi and Anita Dhesi's Proof of Service, pp. 21-22 [filed 4/22/26]; Blueberry Trading LLC's Proof of Service, pp. 18-19 [filed 4/22/26].)

As the Court is denying Blueberry Trading LLC's motion to quash deposition subpoena for production of business records on procedural grounds, the Court does not rule on plaintiff's objections to the declaration of Keerut Dhesi filed in support of the reply to opposition.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California